

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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AZER AZIZOV,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER CHAD
J. MACK, Shield No. 27695, DETECTIVE
CHRISTOPHER GREINER, Shield No. 1425,
SERGEANT LUKE DENESOPOLIS, DETECTIVE JOHN
SIOKAS, and POLICE OFFICERS JOHN DOES #1-4
(names and number of whom are unknown at present), and
other unidentified members of the New York City Police
Department,

Defendants.
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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

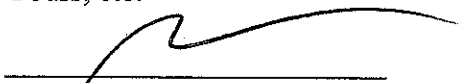
Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
May 8, 2015

Yours, etc.



JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
11 Park Place, 10th Floor
New York, New York 10007
(212) 577-2690

TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER CHAD J. MACK, Shield No. 27695, Brooklyn North Narcotics,
Room 1100, NY, NY
DETECTIVE CHRISTOPHER GREINER, Shield No. 1425, Brooklyn North Narcotics,
Room 1100, NY, NY
SERGEANT LUKE DENESOPOLIS, Brooklyn North Narcotics, Room 1100, NY, NY
DETECTIVE JOHN SIOKAS, Brooklyn North Narcotics, Room 1100, NY, NY

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INDEX NO.:

VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, AZER AZIZOV, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On February 7, 2014 at approximately 9:00 p.m. plaintiff Azer Azizov was lawfully driving a motor vehicle in the vicinity of 14 Street and Hamilton Avenue, Brooklyn, New York, when he was unlawfully pulled over by the defendant police officers, and he was subjected to an unlawful search, false arrest, false imprisonment, and strip search by the defendant New York City police officers. Thereafter, plaintiff was maliciously prosecuted and denied the right to a fair trial by the defendant police officers. Plaintiff was deprived of his constitutional and common law rights when the individual defendants unlawfully searched, confined, falsely arrested, illegally stripped searched, and maliciously prosecuted in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Bernard Miller is a resident of the state of New York.
3. POLICE OFFICER CHAD J. MACK, Shield No. 27695, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER CHAD J. MACK, Shield No. 27695, is and was at all times relevant herein, assigned Brooklyn North Narcotics.
5. POLICE OFFICER CHAD J. MACK, Shield No. 27695 is being sued in his individual and official capacity.
6. DETECTIVE CHRISTOPHER GREINER, Shield No. 1425, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. DETECTIVE CHRISTOPHER GREINER, Shield No. 1425, is and was at all times relevant herein, assigned Brooklyn North Narcotics.
8. DETECTIVE CHRISTOPHER GREINER, Shield No. 1425 is being sued in his individual and official capacity.
9. SERGEANT LUKE DENESOPOLIS, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. SERGEANT LUKE DENESOPOLIS, is and was at all times relevant herein, assigned to Brooklyn North Narcotics.
11. SERGEANT LUKE DENESOPOLIS is being sued in his individual and official capacity.
12. DETECTIVE JOHN SIOKAS is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
13. DETECTIVE JOHN SIOKAS is and was at all times relevant herein, assigned to Brooklyn North Narcotics.
14. DETECTIVE JOHN SIOKAS is being sued in his individual and official capacity.
15. New York City Police Officers John Does #1-4 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
16. Police Officers John Does #1-4 are being sued in their individual and official capacities.

17. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

18. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

19. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claims against the CITY OF NEW YORK, in compliance with the Municipal Law Section 50.

20. The City conducted a hearing pursuant to General Municipal Law Section 50-h on May 16, 2014.

21. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

22. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

23. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

24. On February 7, 2014 at approximately 9:00 p.m. plaintiff Azer Azizov was lawfully driving his motor vehicle in the vicinity of 14 Street and Hamilton Avenue, Brooklyn, New York, when his motor vehicle was unlawfully pulled over by the defendant police officers.

25. At no time prior to pulling over plaintiff did the defendant police officers have any objective factual basis to believe plaintiff had committed a crime, was about to commit a crime, or was in the process of committing a crime.

26. Immediately upon pulling plaintiff's vehicle to the side of the road, the officers approached plaintiff's vehicle, opened the driver's side door of the vehicle and physically pulled plaintiff from the vehicle, ripping claimant's jacket.

27. The officers did not have any conversation with plaintiff before they opened the car door and pulled him from the vehicle, nor have the officers ever claimed that they had probable cause to believe plaintiff committed a crime as they approached plaintiff's vehicle.

28. Nevertheless, the officers unlawfully pulled plaintiff from his vehicle, placed him with his arms extended across the trunk of the vehicle and proceeded to conduct a thorough unlawful search of plaintiff's person.

29. At no time did the officers find any drugs, weapons or illegal contraband on plaintiff's person, nor do the officers claim they found an illegal substance pursuant to their unlawful search of plaintiff.

30. Thereafter, the police officers conducted an unlawful and thorough search of plaintiff's vehicle without probable cause.

31. Notably, upon unlawfully searching plaintiff's vehicle, the defendant police officers did not recover any illegal drugs, weapons, or contraband of any kind.

32. The only thing the defendant police officers recovered inside of plaintiff's vehicle, was plaintiff's legally prescribed Clonazepam pills, as well as the prescription pill bottle for the pills, and plaintiff's actual prescription, which indicated plaintiff's name.

33. Despite knowing that plaintiff was in lawful possession of the Clonazepam, the defendant police officers nevertheless handcuffed plaintiff and arrested him without legal justification or probable cause.

34. Thereafter, plaintiff was transported to the 76th precinct.

35. Upon arrival at the 76th precinct, the defendants subjected plaintiff was subjected to an invasive and unlawful strip search without reasonable suspicion or probable cause.

36. Additionally while at the 76th precinct, plaintiff told the defendant police officers he needed to call his employer because he was supposed to attend an important meeting that day, however the defendant police officers refused to allow plaintiff to call his employer.

37. As a result of the unlawful arrest, plaintiff missed the important meeting and was fired from his job that he had for 14 years.

38. After approximately 5 hours at the precinct, plaintiff was transported to Brooklyn Central Booking.

39. The defendant police officers then falsely stated to the Brooklyn District Attorney's Office that plaintiff had committed a crime.

40. Based upon the false, misleading, and incomplete information provided to the District Attorney's Office by the defendant police officers and sworn to by the defendants in the criminal court complaint, defendants initiated a prosecution against plaintiff on February 7, 2014, and legal process against plaintiff was commenced when plaintiff was arraigned in King County Criminal Court and was falsely charged with several crimes.

41. Specifically, the defendant police officers failed to tell the District Attorney's Office that they had recovered a lawful prescription for the Clonazepam pills they found in plaintiff's vehicle.

42. On February 8, 2014, at approximately 1:00 p.m., after approximately 30 hours in police custody, plaintiff was arraigned in Kings County Criminal Court, falsely charged with several crimes the defendant officers lacked probable cause to allege he committed, and he was released on his own recognizance.

43. Thereafter, on March 17, 2014, plaintiff was forced to appear Court and all charges against plaintiff terminated in his favor and were dismissed.

44. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, false arrest, false imprisonment, strip search, malicious prosecution, and denial of fair trial against plaintiff.

45. As a result of the unlawful arrest and malicious prosecution, plaintiff lost his job that he had held for 14 years.

46. Additionally, the defendant police officers unlawfully seized plaintiff's motor vehicle and impounded the vehicle. However, when they impounded the vehicle they left the lights on and the battery died.

47. As a result of the unlawful seizure of plaintiff's motor vehicle, when plaintiff went to pick up the motor vehicle that was impounded the battery was dead and it cost him approximately \$300 to have a tow truck come to change the battery of the vehicle.

48. The unlawful search, false arrest, false imprisonment, unlawful strip search malicious prosecution, and denial of a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

51. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.

52. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

53. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

54. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

55. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

56. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Search

57. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

58. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of his pants and underneath his clothing employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

59. The defendant police officers also unlawfully searched plaintiff's motor vehicle.

60. Defendants lacked probable cause to search plaintiff.

61. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

62. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

63. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

64. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Malicious Prosecution

65. Plaintiff repeats and realleges paragraphs 1 through 65 as if fully set forth herein.

66. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

67. Defendants commenced and continued a criminal proceeding against plaintiff.

68. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

69. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned date.

70. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

72. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial

73. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 72 with the same force and effect as if fully set forth herein.

74. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

75. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

76. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

77. In withholding/creating false evidence against plaintiff Azer Azizov, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

78. As a result of the foregoing, plaintiff Azer Azizov, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

79. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

80. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

81. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

83. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 82 with the same force and effect as if more fully set forth at length herein.

84. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff, Azer Azizov. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

85. As a result of the foregoing, plaintiff was deprived of liberty and sustained great emotional injuries.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

EIGHTH CAUSE OF ACTION

Unlawful Strip Search

87. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 86 with the same force and effect as if more fully set forth at length herein.

88. Plaintiff was searched by defendants without an individualized reasonable suspicion that plaintiff was concealing weapons or other contraband based on a crime charged, the particular characteristics of the arrestee, and/or the circumstances of the arrest.

89. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

90. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

91. As a result of the foregoing, plaintiff's Constitutional rights were deprived and he sustained great emotional injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

92. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.

93. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

94. Defendants failed to intervene to prevent the unlawful conduct described herein.

95. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

96. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

97. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

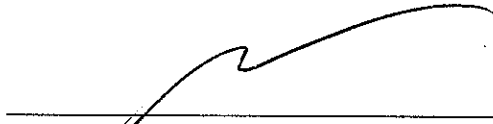
JURY DEMAND

98. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Azer Azizov demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
May 8, 2015

By: 

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
11 Park Place, 10th Floor
New York, NY 10007
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TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
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DETECTIVE JOHN SIOKAS, Brooklyn North Narcotics, Room 1100, NY, NY

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **AMENDED VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
May 8, 2015



STUART E. JACOBS